



ARIZONA HOUSE OF REPRESENTATIVES FLOOR AMENDMENT EXPLANATION

57th Legislature, 2nd Regular Session
Majority Research Staff

HB 2041: child neglect; financial resources; exception

FINK FLOOR AMENDMENT

1. Removes the provision relating to the redefinition of neglect.

FINK FLOOR AMENDMENT
HOUSE OF REPRESENTATIVES AMENDMENTS TO H.B. 2041
(Reference to GOVERNMENT Committee amendment)

Amendment instruction key:

[GREEN UPPERCASE UNDERLINING IN BRACKETS] indicates that the amendment is adding text to statute or previously enacted session law.
[Green lowercase underlining in brackets] indicates that the amendment is adding text to new session law or is restoring previously stricken text to existing statute.
~~[GREEN UPPERCASE STRIKEOUT IN BRACKETS]~~ indicates that the amendment is removing new text from statute or previously enacted session law.
~~[Green lowercase strikeout in brackets]~~ indicates that the amendment is removing text from existing statute, previously enacted session law or new session law.
<<Double green carets enclosing an entire section>> indicates that the amendment is adding the section to the bill.
~~<<Green strikeout with double green carets enclosing an entire section>>~~ indicates that the amendment is removing the section to the bill.
{[ORANGE UPPERCASE UNDERLINING IN DOUBLE CURLY BRACKETS]} indicates that the amendment to an amendment is adding text to statute or previously enacted session law.
{[Orange lowercase underlining in double curly brackets]} indicates that the amendment to an amendment is adding text to new session law or is restoring previously stricken text to existing statute.
~~{[ORANGE UPPERCASE STRIKEOUT IN DOUBLE CURLY BRACKETS]}~~ indicates that the amendment to an amendment is removing new text from statute or previously enacted session law.
~~{[Orange lowercase strikeout in double curly brackets]}~~ indicates that the amendment to an amendment is removing text from existing statute, previously enacted session law or new session law.
>>Double orange underlined carets enclosing an entire section>> indicate that the amendment to an amendment is adding the section to the bill.
~~>>Orange strikeout with double orange underlined carets enclosing an entire section>>~~ indicates that the amendment to an amendment is removing the section from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 ~~>>Section 1. Section 8-201, Arizona Revised Statutes, is amended to~~
3 ~~read:~~
4 ~~8-201. Definitions~~
5 ~~In this title, unless the context otherwise requires:~~
6 ~~1. "Abandoned" means the failure of the parent to provide~~
7 ~~reasonable support and to maintain regular contact with the child,~~
8 ~~including providing normal supervision. Abandoned includes a judicial~~
9 ~~finding that a parent has made only minimal efforts to support and~~
10 ~~communicate with the child. Failure to maintain a normal parental~~
11 ~~relationship with the child without just cause for a period of six months~~
12 ~~constitutes prima facie evidence of abandonment.~~
13 ~~2. "Abuse":~~
14 ~~(a) Means the infliction or allowing of physical injury, impairment~~
15 ~~of bodily function or disfigurement or the infliction of or allowing~~
16 ~~another person to cause serious emotional damage as evidenced by severe~~

1 ~~anxiety, depression, withdrawal or untoward aggressive behavior and which~~
2 ~~emotional damage is diagnosed by a medical doctor or psychologist and is~~
3 ~~caused by the acts or omissions of an individual who has the care, custody~~
4 ~~and control of a child, including an employee of a child welfare agency~~
5 ~~where a child is placed that is licensed by and contracted with the~~
6 ~~department.~~

7 ~~(b) Includes:~~

8 ~~(i) Inflicting or allowing sexual abuse pursuant to section~~
9 ~~13-1404, sexual conduct with a minor pursuant to section 13-1405, sexual~~
10 ~~assault pursuant to section 13-1406, molestation of a child pursuant to~~
11 ~~section 13-1410, commercial sexual exploitation of a minor pursuant to~~
12 ~~section 13-3552, sexual exploitation of a minor pursuant to section~~
13 ~~13-3553, incest pursuant to section 13-3608 or child sex trafficking~~
14 ~~pursuant to section 13-3212.~~

15 ~~(ii) Physical injury that results from allowing a child to enter or~~
16 ~~remain in any structure or vehicle in which volatile, toxic or flammable~~
17 ~~chemicals are found or equipment is possessed by any person for the~~
18 ~~purpose of manufacturing a dangerous drug as defined in section 13-3401.~~

19 ~~(iii) Unreasonable confinement of a child.~~

20 ~~3. "Adult" means a person who is eighteen years of age or older.~~

21 ~~4. "Adult court" means the appropriate justice court, municipal~~
22 ~~court or criminal division of the superior court that has jurisdiction to~~
23 ~~hear proceedings concerning offenses committed by juveniles as provided in~~
24 ~~sections 8-327 and 13-501.~~

25 ~~5. "Award" or "commit" means to assign legal custody.~~

26 ~~6. "Child", "youth" or "juvenile" means an individual who is under~~
27 ~~eighteen years of age.~~

28 ~~7. "Complaint" means a written statement of the essential facts~~
29 ~~constituting a public offense that is any of the following:~~

30 ~~(a) Made on an oath before a judge or commissioner of the superior~~
31 ~~court or an authorized juvenile hearing officer.~~

32 ~~(b) Made pursuant to section 13-3903.~~

33 ~~(c) Accompanied by an affidavit of a law enforcement officer or~~
34 ~~employee that swears on information and belief to the accuracy of the~~
35 ~~complaint pursuant to section 13-4261.~~

36 ~~8. "Criminal conduct allegation" means an allegation of conduct by~~
37 ~~a parent, guardian or custodian of a child or an adult member of the~~
38 ~~victim's household that, if true, would constitute any of the following:~~

39 ~~(a) A violation of section 13-3623 involving child abuse.~~

40 ~~(b) A felony offense that constitutes domestic violence as defined~~
41 ~~in section 13-3601.~~

42 ~~(c) A violation of section 13-1404 or 13-1406 involving a minor.~~

43 ~~(d) A violation of section 13-1405, 13-1410 or 13-1417.~~

44 ~~(e) Any other act of abuse that is classified as a felony.~~

45 ~~(f) An offense that constitutes domestic violence as defined in~~
46 ~~section 13-3601 and that involves a minor who is a victim of or was in~~
47 ~~imminent danger during the domestic violence.~~

1 ~~9. "Custodian" means a person, other than a parent or legal~~
2 ~~guardian, who stands in loco parentis to the child or a person to whom~~
3 ~~legal custody of the child has been given by order of the juvenile court.~~

4 ~~10. "DCS report" means a communication received by the centralized~~
5 ~~intake hotline that alleges child abuse or neglect and that meets the~~
6 ~~criteria for a report as prescribed in section 8-455.~~

7 ~~11. "Delinquency hearing" means a proceeding in the juvenile court~~
8 ~~to determine whether a juvenile has committed a specific delinquent act as~~
9 ~~set forth in a petition.~~

10 ~~12. "Delinquent act" means an act by a juvenile that if committed~~
11 ~~by an adult would be a criminal offense or a petty offense, a violation of~~
12 ~~any law of this state, or of another state if the act occurred in that~~
13 ~~state, or a law of the United States, or a violation of any law that can~~
14 ~~only be violated by a minor and that has been designated as a delinquent~~
15 ~~offense, or any ordinance of a city, county or political subdivision of~~
16 ~~this state defining crime. Delinquent act does not include an offense~~
17 ~~under section 13-501, subsection A or B if the offense is filed in adult~~
18 ~~court. Any juvenile who is prosecuted as an adult or who is remanded for~~
19 ~~prosecution as an adult shall not be adjudicated as a delinquent juvenile~~
20 ~~for the same offense.~~

21 ~~13. "Delinquent juvenile" means a child who is adjudicated to have~~
22 ~~committed a delinquent act.~~

23 ~~14. "Department" means the department of child safety.~~

24 ~~15. "Dependent child":~~

25 ~~(a) Means a child who is adjudicated to be:~~

26 ~~(i) In need of proper and effective parental care and control and~~
27 ~~who has no parent or guardian, or one who has no parent or guardian~~
28 ~~willing to exercise or capable of exercising such care and control.~~

29 ~~(ii) Destitute or who is not provided with the necessities of life,~~
30 ~~including adequate food, clothing, shelter or medical care.~~

31 ~~(iii) A child whose home is unfit by reason of abuse, neglect,~~
32 ~~cruelty or depravity by a parent, a guardian or any other person having~~
33 ~~custody or care of the child.~~

34 ~~(iv) Under eight years of age and who is found to have committed an~~
35 ~~act that would result in adjudication as a delinquent juvenile or~~
36 ~~incorrigible child if committed by an older juvenile or child.~~

37 ~~(v) Incompetent or not restorable to competency and who is alleged~~
38 ~~to have committed a serious offense as defined in section 13-706.~~

39 ~~(b) Does not include a child who in good faith is being furnished~~
40 ~~Christian Science treatment by a duly accredited practitioner if none of~~
41 ~~the circumstances described in subdivision (a) of this paragraph exists.~~

42 ~~16. "Detention" means the temporary confinement of a juvenile who~~
43 ~~requires secure care in a physically restricting facility that is~~
44 ~~completely surrounded by a locked and physically secure barrier with~~
45 ~~restricted ingress and egress for the protection of the juvenile or the~~
46 ~~community pending court disposition or as a condition of probation.~~

47 ~~17. "Director" means the director of the department.~~

48 ~~18. "Health professional" has the same meaning prescribed in~~
49 ~~section 32-3201.~~

1 ~~19. "Incorrigible child" means a child who:~~

2 ~~(a) Is adjudicated as a child who refuses to obey the reasonable~~
3 ~~and proper orders or directions of a parent, guardian or custodian and who~~
4 ~~is beyond the control of that person.~~

5 ~~(b) Is habitually truant from school as defined in section 15-803,~~
6 ~~subsection C.~~

7 ~~(c) Is a runaway from the child's home or parent, guardian or~~
8 ~~custodian.~~

9 ~~(d) Habitually behaves in such a manner as to injure or endanger~~
10 ~~the morals or health of self or others.~~

11 ~~(e) Commits any act constituting an offense that can only be~~
12 ~~committed by a minor and that is not designated as a delinquent act.~~

13 ~~(f) Fails to obey any lawful order of a court of competent~~
14 ~~jurisdiction given in a noncriminal action.~~

15 ~~20. "Independent living program" includes a residential program~~
16 ~~with supervision of less than twenty-four hours a day.~~

17 ~~21. "Juvenile court" means the juvenile division of the superior~~
18 ~~court when exercising its jurisdiction over children in any proceeding~~
19 ~~relating to delinquency, dependency or incorrigibility.~~

20 ~~22. "Law enforcement officer" means a peace officer, sheriff,~~
21 ~~deputy sheriff, municipal police officer or constable.~~

22 ~~23. "Medical director of a mental health agency":~~

23 ~~(a) Means a psychiatrist, or A licensed physician experienced in~~
24 ~~psychiatric matters, who is designated in writing by the governing body of~~
25 ~~the MENTAL HEALTH agency as the person in charge of the medical services~~
26 ~~of the MENTAL HEALTH agency, or a psychiatrist designated by the governing~~
27 ~~body to act for the director.~~

28 ~~(b) Includes the superintendent of the state hospital.~~

29 ~~24. "Mental health agency" means any private or public facility~~
30 ~~that is licensed by this state as a mental health treatment agency, a~~
31 ~~psychiatric hospital, a psychiatric unit of a general hospital or a~~
32 ~~residential treatment center for emotionally disturbed children and that~~
33 ~~uses secure settings or mechanical restraints.~~

34 ~~25. "Neglect" or "neglected" means:~~

35 ~~(a) The inability or unwillingness of a parent, guardian or~~
36 ~~custodian of a child to provide that child with supervision, food,~~
37 ~~clothing, shelter or medical care if that inability or unwillingness~~
38 ~~causes substantial risk of harm to the child's health or welfare, except~~
39 ~~if FOR EITHER OF THE FOLLOWING:~~

40 ~~(i) The inability of a THE parent, guardian or custodian to~~
41 ~~provide services to meet the needs of a child with a disability or chronic~~
42 ~~illness is solely the result of the unavailability of reasonable services.~~

43 ~~(ii) THE INABILITY OF THE PARENT, GUARDIAN OR CUSTODIAN TO PROVIDE~~
44 ~~THE CHILD WITH SUPERVISION, FOOD, CLOTHING, SHELTER OR MEDICAL CARE IS~~
45 ~~SOLELY DUE TO A LACK OF FINANCIAL RESOURCES AVAILABLE TO THE PARENT,~~
46 ~~GUARDIAN OR CUSTODIAN.~~

47 ~~(b) Allowing a child to enter or remain in any structure or vehicle~~
48 ~~in which volatile, toxic or flammable chemicals are found or equipment is~~

~~1 possessed by any person with the intent and for the purpose of~~
~~2 manufacturing a dangerous drug as defined in section 13-3401.~~
~~3 (c) A determination by a health professional that a newborn infant~~
~~4 was exposed prenatally to a drug or substance listed in section 13-3401~~
~~5 and that this exposure was not the result of a medical treatment~~
~~6 administered to the mother or the newborn infant by a health professional.~~
~~7 This subdivision does not expand a health professional's duty to report~~
~~8 neglect based on prenatal exposure to a drug or substance listed in~~
~~9 section 13-3401 beyond the requirements prescribed pursuant to section~~
~~10 13-3620, subsection E. The determination by the health professional shall~~
~~11 be based on one or more of the following:~~
~~12 (i) Clinical indicators in the prenatal period, including maternal~~
~~13 and newborn presentation.~~
~~14 (ii) History of substance use or abuse.~~
~~15 (iii) Medical history.~~
~~16 (iv) Results of a toxicology or other laboratory test on the mother~~
~~17 or the newborn infant.~~
~~18 (d) Diagnosis by a health professional of an infant under one year~~
~~19 of age with clinical findings consistent with fetal alcohol syndrome or~~
~~20 fetal alcohol effects.~~
~~21 (e) Deliberate exposure of a child by a parent, guardian or~~
~~22 custodian to sexual conduct as defined in section 13-3551 or to sexual~~
~~23 contact, oral sexual contact or sexual intercourse as defined in section~~
~~24 13-1401, bestiality as prescribed in section 13-1411 or explicit sexual~~
~~25 materials as defined in section 13-3507.~~
~~26 (f) Any of the following acts committed by the child's parent,~~
~~27 guardian or custodian with reckless disregard as to whether the child is~~
~~28 physically present:~~
~~29 (i) Sexual contact as defined in section 13-1401.~~
~~30 (ii) Oral sexual contact as defined in section 13-1401.~~
~~31 (iii) Sexual intercourse as defined in section 13-1401.~~
~~32 (iv) Bestiality as prescribed in section 13-1411.~~
~~33 26. "Newborn infant" means a child who is under thirty days of age.~~
~~34 27. "Petition" means a written statement of the essential facts~~
~~35 that allege delinquency, incorrigibility or dependency.~~
~~36 28. "Prevention" means the creation of conditions, opportunities~~
~~37 and experiences that encourage and develop healthy, self-sufficient~~
~~38 children and that occur before the onset of problems.~~
~~39 29. "Protective supervision" means supervision that is ordered by~~
~~40 the juvenile court of children who are found to be dependent or~~
~~41 incorrigible.~~
~~42 30. "Qualified young adult" means a former dependent child who is~~
~~43 at least eighteen years of age and not over twenty-one years of age, who~~
~~44 meets the criteria for an extended foster care program pursuant to section~~
~~45 8-521.02 and who signs a voluntary agreement to participate in the~~
~~46 program.~~
~~47 31. "Referral" means a report that is submitted to the juvenile~~
~~48 court and that alleges that a child is dependent or incorrigible or that a~~
~~49 juvenile has committed a delinquent or criminal act.~~

~~32. "Secure care" means confinement in a facility that is completely surrounded by a locked and physically secure barrier with restricted ingress and egress.~~

~~33. "Serious emotional injury" means an injury that is diagnosed by a medical doctor or a psychologist and that does MEETS any one or a combination of the following:~~

~~(a) Seriously impairs mental faculties.~~

~~(b) Causes serious anxiety, depression, withdrawal or social dysfunction behavior to the extent that the child suffers dysfunction that requires treatment.~~

~~(c) Is the result of sexual abuse pursuant to section 13-1404, sexual conduct with a minor pursuant to section 13-1405, sexual assault pursuant to section 13-1406, molestation of a child pursuant to section 13-1410, child sex trafficking pursuant to section 13-3212, commercial sexual exploitation of a minor pursuant to section 13-3552, sexual exploitation of a minor pursuant to section 13-3553 or incest pursuant to section 13-3608.~~

~~34. "Serious physical injury" means an injury that is diagnosed by a medical doctor and that does MEETS any one or a combination of the following:~~

~~(a) Creates a reasonable risk of death.~~

~~(b) Causes serious or permanent disfigurement.~~

~~(c) Causes significant physical pain.~~

~~(d) Causes serious impairment of health.~~

~~(e) Causes the loss or protracted impairment of an organ or limb.~~

~~(f) Is the result of sexual abuse pursuant to section 13-1404, sexual conduct with a minor pursuant to section 13-1405, sexual assault pursuant to section 13-1406, molestation of a child pursuant to section 13-1410, child sex trafficking pursuant to section 13-3212, commercial sexual exploitation of a minor pursuant to section 13-3552, sexual exploitation of a minor pursuant to section 13-3553 or incest pursuant to section 13-3608.~~

~~35. "Shelter care" means the temporary care of a child in any public or private facility or home that is licensed by this state and that offers a physically nonsecure environment that is characterized by the absence of physically restricting construction or hardware and that provides the child access to the surrounding community.~~

~~36. "Standardized hotline assessment tool" means any written tool used to make a determination that the allegation of abuse or neglect that is the subject of a report received pursuant to section 8-455 involves conduct that warrants investigation by the department pursuant to section 8-456 or 8-471.~~

~~37. "Young adult administrative review" means an administrative review of a voluntary extended foster care case plan with the qualified young adult, the department's case specialist or designee, an independent party who is not responsible for the case management of or the delivery of services to the qualified young adult and any other individual the young adult invites.>>>~~

1 <<Section 1. Section 8-201.01, Arizona Revised Statutes, is amended
2 to read:

3 8-201.01. Prohibitions

4 A. Notwithstanding any other provision of this chapter or chapter
5 4, articles 8, 9, 10, 11, 12, 13 and 14 of this title:

6 1. A child who in good faith is being furnished Christian Science
7 treatment by a duly accredited practitioner shall not, for that reason
8 alone, be considered to be an abused, neglected or dependent child.

9 2. A child whose parent, guardian or custodian refuses to put the
10 child on a psychiatric medication or questions the use of a psychiatric
11 medication shall not be considered to be an abused, neglected or dependent
12 child for that reason alone.

13 B. A parent may not be considered as having abused, neglected or
14 abandoned or [BE] charged with abuse, neglect or abandonment of a
15 biological, foster or adoptive child solely for seeking inpatient
16 treatment or an out-of-home placement if the child's behavioral health
17 needs pose a risk to the safety and welfare of the family.

18 C. A parent may not be considered as having abused or neglected or
19 [BE] charged with abuse or neglect of a child solely for bringing into the
20 home a biological, foster or adoptive child whose behavioral health needs
21 pose a risk to the safety and welfare of the family.

22 [D. A PARENT, GUARDIAN OR CUSTODIAN MAY NOT BE CONSIDERED AS HAVING
23 ABUSED OR NEGLECTED OR BE CHARGED WITH ABUSE OR NEGLECT OF A CHILD SOLELY
24 BASED ON THE INABILITY OF THE PARENT, GUARDIAN OR CUSTODIAN TO PROVIDE THE
25 CHILD WITH SUPERVISION, FOOD, CLOTHING, SHELTER OR MEDICAL CARE IF THE
26 INABILITY IS DUE SOLELY TO A LACK OF FINANCIAL RESOURCES AVAILABLE TO THE
27 PARENT, GUARDIAN OR CUSTODIAN.]>>

28 Enroll and engross to conform

29 Amend title to conform

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